

		Applying the above hourly rates and eliminating entries for duplicative, excessive and/or unnecessary work, the following hours and rates are reasonable: <table><tr><th>Timekeeper</th><th>Hourly Rate</th><th>Time Claimed</th><th>Time Granted</th><th>Total</th></tr><tr><td>Michael Saeediann</td><td>\$695</td><td>1.5</td><td>0.9</td><td>625.5</td></tr><tr><td>Christopher Urner</td><td>\$525</td><td>24.8</td><td>16.8</td><td>8820</td></tr><tr><td>Jorge L. Acosta</td><td>\$350</td><td>12.1</td><td>8.5</td><td>2975</td></tr><tr><td>Sergio Aivazov</td><td>\$300</td><td>10.8</td><td>9.5</td><td>2850</td></tr><tr><td>Jorge L. Acosta (law clerk rate)</td><td>\$100</td><td>0.8</td><td>0.7</td><td>70</td></tr><tr><td>Total</td><td></td><td></td><td></td><td>\$15,340.5</td></tr></table> The Court declines to apply a positive or negative multiplier to this case. Plaintiff filed a memorandum of costs claiming \$924.58 in costs. Defendant does not dispute the request for costs. Plaintiff’s requests for costs of \$924.58 is granted. Plaintiff to give notice. <u>Order to Show Cause re: Dismissal on Settled Case</u> The Order to Show Cause re: Dismissal on Settled Case is continued to June 26, 2025, at 9:00 a.m. in this Department. Plaintiff to give notice.	Timekeeper	Hourly Rate	Time Claimed	Time Granted	Total	Michael Saeediann	\$695	1.5	0.9	625.5	Christopher Urner	\$525	24.8	16.8	8820	Jorge L. Acosta	\$350	12.1	8.5	2975	Sergio Aivazov	\$300	10.8	9.5	2850	Jorge L. Acosta (law clerk rate)	\$100	0.8	0.7	70	Total				\$15,340.5
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9	Perez v. My Botanica, Inc.	The motion by Defendant My Botanica, Inc., to strike portions of the complaint relating to punitive damages is DENIED. A motion to strike punitive damages is properly granted where a plaintiff does not state a prima facie claim for punitive damages, including allegations that defendant is guilty of oppression, fraud or malice. (<i>Turman v. Turning Point of Cent. California, Inc.</i> (2010) 191 Cal.App.4th 53, 63; Cal. Civ. Code § 3294(a).) “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Code Civ. Proc. § 3294(c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Code Civ. Code § 3294(c)(2).) “‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Code Civ. Proc. §3294(c)(3).)																																			

		"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (<i>Clauson v. Superior Court</i> (1998) 67 Cal. App. 4th 1253, 1255.) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (<i>Smith v. Sup. Ct.</i> (1992) 10 Cal.App.4th 1033, 1042.) Section 3294 permits punitive damages against a corporate employer if the employee is sufficiently high in the corporation's decision-making hierarchy to be an "officer, director or managing agent." (Civ. Code, § 3294, subds. (a), (b); <i>White v. Ultramar, Inc.</i> (1999) 21 Cal.4th 563, 572, 88 Cal.Rptr.2d 19, 981 P.2d 944 (<i>White</i>); see also <i>Cruz v. HomeBase</i> (2000) 83 Cal.App.4th 160, 167, 99 Cal.Rptr.2d 435 ["'Managing agents' are employees who 'exercise [] substantial discretionary authority over decisions that ultimately determine corporate policy.'" (Citation.)"] (italics omitted)].) In employment discrimination cases, juries have found that corporate decisions that are discriminatory under FEHA are sufficient to constitute conduct for which punitive damages are available. For example, in <i>Roby v. McKesson Corp.</i> (2009) 47 Cal.4th 686, a strict attendance policy that did not reasonably accommodate persons with disabilities was sufficient for a jury to award punitive damages. (<i>Id.</i> at 713.) The court reasoned that due to the employee being terminated because of the attendance policy, the employee suffered emotional and mental distress as well as lost her financial savings after termination, leaving her financially vulnerable. (<i>Ibid.</i>) As such, a jury could reasonably infer that the company's adoption of such a strict and flawed attendance policy was "conduct that evinced an indifference to or a reckless disregard of the health or safety of others" and constituted oppression or malice. (<i>Ibid.</i>) Further, a corporate policy that reduced compensation for older managers after an employee filed an EEOC complaint constituted conduct for which punitive damages were available. (<i>Wysinger v. Automobile Club of Southern California</i> (2007) 157 Cal.App.4th 413, 428.) A jury could reasonably infer that the policy was a pretext to deny the employee a transfer and created a hostile work environment in retaliation for the EEOC complaint. (<i>Ibid.</i>) Here, Defendant identifies various allegations relating to punitive damages and argues that those allegations, in and of themselves, are conclusionary and insufficient to allege punitive damages. In doing so, Defendant fails to read the complaint and all of Plaintiff's allegations as a whole. The court finds that Plaintiff has alleged sufficient ultimate facts to state a claim for disability discrimination, from which punitive damages would be an available remedy. Similar to <i>Roby</i>, Plaintiff alleges that he suffered a disability, requested multiple accommodations, was denied accommodation and harassed for doing so, including the use of racial slurs, and was terminated for Plaintiff's requests for accommodation, reports of injury and pain, and perceived filing for workers' compensation. A jury could reasonably infer from these facts that terminating Plaintiff for asking for a medical accommodation was a <i>policy</i> that did not reasonably accommodate persons with disabilities—i.e., "conduct that evinced an indifference to or a reckless disregard of the health or safety
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